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ORDER ON

PLAINTIFF'S MOTION IN LIMINE NO. 12 TO EXCLUDE DEFENSE EXPERT TIMOTHY LONG'S
TESTIMONY REGARDING ANY PRIOR ACCIDENT AND THE GOOGLE STREET VIEW IMAGES

On August 4, 2026, the Court heard
argument on Plaintiff's Motion in Limine No. 12

Having considered Plaintiff's
supplemental brief, Defendant Valencia Dodge's opposition, the cited evidence,
and the argument of counsel, the Court rules as follows. The motion is
GRANTED IN PART and DENIED IN PART.

MIL No. 12 concerns a Google Street
View Image of the intersection where the accident occurred. (Ex. 217, at
20-30.) Defendant states that Tim Long, its accident reconstruction expert, would
testify that the Images show that as of May 2019 there already had been another
accident at the subject intersection, as shown by 1) skid marks in the
intersection, and 2) the spray-painted letters "AOI" in the intersection, which
Mr. Long takes to have been written by a responding police officer, and that
stand for "Area of Impact." Mr. Long would testify that these same skid marks
and "AOI" writing is shown in photographs taken immediately after the accident
at issue in this case. Mr. Long would opine that he correctly interpreted which
set of skid marks were caused by the accident at issue, that plaintiff's
reconstruction expert misattributed the earlier skid marks to the accident at
issue, and that using the "correct" skid marks supports Mr. Long's recreation
of how Plaintiff's car moved after impact and contradicts the account of
Plaintiff's reconstruction expert.

Plaintiff seeks to exclude Mr. Long's

"testimony, opinion, reference, or argument regarding any accident at the intersection of 60th Street West and Avenue F prior to November 14, 2019, and the hearsay Google Street View Images he relied on in forming his opinion."

(Plaintiff's Motion in Limine No. 12, at 1:3-6.)

Defendant responds, "The Google

aerial image itself is not hearsay because it contains no statement and is rather analogous to investigative photographs taken at the scene or radiology images. There is no declarant, no statement and as a result, no hearsay issue.

Moreover, the skid marks are physical evidence." (Opposition, at 2:12-15.)

Both Plaintiff and Defendant are

correct in saying the images are hearsay, and are not hearsay. An aerial photograph taken by a satellite, such as the image here, is not in itself hearsay. (People v. Rodriguez (2017)16 Cal. App. 5th 355, 379 ("Similar distinctions about computer-generated data have been reached by courts in other jurisdictions. In United States v. Lizarraga-Tirado (9th Cir. 2015) 789 F.3d 1107 (Lizarraga-Tirado), an arresting officer used a GPS device to obtain the coordinates of the location where the defendant was arrested. The court held that a Google Earth satellite image, created using those GPS coordinates, did not constitute hearsay.")

Pictures of skid marks are not hearsay; skid marks are not a "statement" under the evidence code. On the other hand, the photos here do include the writing "AOI," which Mr. Long interprets as a statement by an officer to indicate where a prior accident occurred. The writing that an accident happened at the intersection is an out-of-court statement that Mr. Long is relying on for the truth – hearsay. (In re K.B. (2015) 238 Cal. App. 4th 989 (written text within images subject to hearsay analysis.)

Separate and apart from the hearsay

considerations is the authentication issue. A photograph is a writing and must be authenticated to be admitted. (Evidence Code Section 1400; Sargenti v. City of Long Beach (2026) 120 Cal.App.5th 702, 717.)

MIL No. 12, read literally, seeks to

exclude Mr. Long's testimony "regarding any accident at the intersection of 60th Street West and Avenue F prior to November 14, 2019," and "the hearsay" Google Street View Images he relied on in forming his opinion. MIL No. 12 is

GRANTED on those narrow grounds. Whether a prior accident happened is a case-specific fact of which Mr. Long has no personal knowledge and for which he identifies no percipient source; his sole basis for concluding that there was prior "accident" appears to be the "AOI" writing on the intersection and captured in the images. Mr. Long may not testify to this inadmissible hearsay of a prior accident at the intersection, and the images containing that hearsay are excluded. (*People v. Sanchez* (2016) 63 Cal.4th 665, 677supra, 63 Cal.4th at pp. 676–677 ("That 15 feet of skid marks were measured at an auto accident scene would be case-specific information. Those facts could be established, for example, through the testimony of a person who measured the marks. How automobile skid marks are left on pavement and the fact that a given equation can be used to estimate speed based on those marks would be background information an expert could provide.").)

The admissibility of the images apart from the embedded hearsay and of expert opinion relying on the non-hearsay component

of the images are different issues. To the extent the MIL seeks to exclude such testimony and evidence beyond the requested relief, the motion is DENIED.

Shorn of hearsay, the images' admissibility

turns on authentication. At the hearing on MIL No. 12, the Court expressed skepticism that Mr. Long could authenticate the images and therefore expressed the opinion that the images could not come into evidence. Having reviewed additional authority since the hearing, the Court thinks it is

a closer question. In *Sargenti v. City of Long Beach* (2026) 120

Cal.App.5th 702, the Court affirmed the holding of the trial court that an attorney's declaration provided no bases to competently authenticate Google Street View Images where the attorney declarant

had no personal knowledge "to demonstrate how the exhibit was obtained, how they identified it, and who identified it. . . . [or] whether the photograph of the street view of the incident location in 2015 is what it purports to be." (*Id.*, at 713.)

The Court gathers from the papers that Mr. Long could testify as to how he obtained the exhibit and identified it. Certainly he could not offer any testimony based on his personal recollection as to whether the image accurately depicts the intersection as of May 2019, the date the image was captured. But other authority holds that such level of personal knowledge is not necessary to authenticate Google mapping information or other satellite-generated mapping data. (*People v. Rodriguez* (2017) 16 Cal. App. 5th 355, 376 (police officer's usage of and reliance on GPS tracking hardware and software sufficient to authenticate automated report generated by technology company; testimony of company's

custodian of records not required).[1]

Based on this standard, it is not inconceivable that Mr. Long, an accident reconstruction expert by trade, could authenticate the Google Street View images he relied on. Therefore the Court will conduct a brief 402 hearing of Mr. Long before he testifies to determine whether he has sufficient knowledge to authenticate the non-hearsay components of the images.

And, regardless of whether Mr. Long can authenticate the images, the Court rules that Mr. Long may testify as to his ultimate opinion that one set of marks pre-dates or is otherwise unrelated to the subject collision, and that Plaintiff's expert relied on the incorrect skid marks, even if such an opinion rests in part on the Google View Images. The Court has three reasons for making this ruling.

First, Sanchez does not preclude an expert from relying on inadmissible evidence, but from relating such evidence to the jury. "Any expert may still rely on hearsay in forming an opinion, and may tell the jury in general terms that he did so. Because the jury must independently evaluate the probative value of an expert's testimony, Evidence Code section 802 properly allows an expert to relate generally the kind and source of the "matter" upon which his opinion rests. A jury may repose greater confidence in an expert who relies upon well-established scientific principles. It may accord less weight to the views of an expert who relies on a single article from an obscure journal or on a lone experiment whose results cannot be replicated. There is a distinction to be made between allowing an expert to describe the type or source of the matter relied upon as opposed to presenting, as fact, case-specific hearsay that does not otherwise fall under a statutory exception." (Sanchez, *supra*, 63 Cal. 4th 665, 685–86.) Here, Mr. Long would not be relating case-specific hearsay, or even relying on it. What Mr. Long could testify to, consistent with the Court ruling that the hearsay aspects of the images are inadmissible, is that, based on his review of materials, that he has formed the opinion that one set of skid marks matches better with the accident than the other. The images are not even necessarily "case specific" information to the extent experts in Mr. Long's field typically rely on Google earth images.

Second, Sanchez focused on the problem of letting an expert testify as to inadmissible hearsay. Hearsay presents unusual and unusually

difficult due process concerns. That's a big part of why the hearsay rule exists. The Court is not permitting Mr. Long to testify about any hearsay, or even to testify about any conclusions to the extent they are based on hearsay (such as that an earlier accident occurred at the intersection). Rather the issue is limited to authentication. Authentication is about reliability – is this exhibit what it purports to be? – and Plaintiff has not argued that the images Mr. Long is relying on anything but. The reliability concerns presented in Sanchez are absent.

Third, there is a question of timing and fair play in MIL No. 12. Los Angeles Superior Court Rule 3.25(f)(2) requires that motions in limine be filed for hearing on noticed motion at the final status conference. Plaintiff presented this motion in limine at the beginning of the third week of trial. The grounds for the motion in limine have been known since Mr. Long's deposition in October 2025. Had Plaintiff properly and timely brought this motion, Defendant could have taken steps to assure the authentication of the images, such as serving a trial subpoena on Google. Defendant should not be unduly prejudiced because Plaintiff did not follow the rules. First and last, a trial should be about the truth. No party here appears to dispute the accuracy of the Google Street View images depicting another set of skid marks at the intersection as of May 2019. Defendant asserts those skid marks are important to its case and its experts opinion. Therefore, regardless of whether he can authenticate the non-hearsay components of the Google images (that is, the skid marks), the Court will allow Mr. Long to testify as to his ultimate opinion that one set of marks pre-dates or is otherwise unrelated to the subject collision, and that Plaintiff's expert relied on the incorrect skid marks.

[1]

“Defendant argues that Sergeant Kessler's testimony did not provide the requisite foundation and authentication, and that an expert from AMS should have testified as custodian about the operation of the hardware and software that produced the GPS data and the report. A similar argument was rejected in *People v. Lugashi*, supra, 205 Cal.App.3d 632, 252 Cal.Rptr. 434, which addressed the foundational evidence required for the business records exception to the hearsay rule in section 1271, for the admission of computer-generated credit card records. Defendant argued that “only a computer expert, who could personally perform the programming, inspect and maintain the software and hardware, and compare competing products, could supply the required testimony. However, a person who generally understands the system's operation and possesses sufficient knowledge and skill to properly use the system and explain the

resultant data, even if unable to perform every task from initial design and programming to final printout, is a 'qualified witness' " for authentication purposes. (Lugashi, at p. 640, 252 Cal.Rptr. 434; see also Goldsmith, supra, 59 Cal.4th at p. 272, 172 Cal.Rptr.3d 637, 326 P.3d 239 [police employee's testimony about operation of automated traffic enforcement cameras was sufficient for authentication of automatically-produced digital photographs; testimony from a technician for company that maintained automated traffic cameras, or other person with special expertise, was not required].") (Rodriguez, 16 Cal. App. 5th at 376.)